

Court Constitution (The Order)

ORDER

SC

2026-VJS-COURTS-CONSTITUTION-001 · 9 June 2026

BINDING

 · assent: sovereign assent · subject: constitutional.court-constitution

V2 courts expressly constituted with odd benches; County 1, Privy Council 3, Supreme Court 5/9; Court of Appeal persists but non-convened.

Giving effect to the express handover order of [2026] REALM-SC 10 and CASE-LAW s. 10 and s. 22(2) as carried into V2: each V2 court that may issue an order is expressly constituted by this named instrument, fixing its odd deciding bench and its jurisdiction. No V2 court may issue an order until so constituted; until a given bench is constituted, jurisdiction over its matters remains with V1.

DIRECTIVE	ACTOR	MUST
D1	county_court	sit as a single judge (odd bench of 1) over repo-local operational matters
D2	privy_council	sit as an odd bench of 3 over constitutional, jurisdiction, routing, and public/private-boundary matters at the realm level (constitutional first instance)
D3	supreme_court	sit as an odd bench of 5, expandable to 9 for constitutional or foundational questions, as the single central apex (s. 22(2))
D4	court_of_appeal	persist in law as a tier (s. 10) but remain administratively non-convened in the V2 MVP; it is NOT abolished, and may be convened on an odd bench of 3 if and when an appeal arises; abolition would require express amendment of s. 10 citing it by number

FORBIDDEN
any V2 court issuing an order before it is constituted by this instrument
any even-numbered deciding bench
abolishing the Court of Appeal tier without express amendment of s. 10 by number
relaxing the singleness of the central apex (s. 22(2))

V2 courts constituted with odd benches: County 1, Privy Council 3, Supreme Court 5 (9 for constitutional/foundational); Court of Appeal persists but is administratively non-convened in the MVP. Gives effect to the [2026] REALM-SC 10 handover order; force from the migration Sovereign Assent.